

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Bingshu Yang	Team: Team # 7	CCRB Case #: 200910348	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Monday, 06/29/2009 3:00 AM	Location of Incident: 6th Avenue and West 4th Street	18 Mo. SOL 12/29/2010	Precinct: 06
Date/Time CV Reported Mon, 06/29/2009 12:00 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 07/06/2009 3:07 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DI Timothy Beaudette	00000	903414	013 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . DI Timothy Beaudette	Discourtesy: D.I. Timothy Beaudette spoke obscenely to § 87(2)(b)	A . Complainant Uncooperative
B . DI Timothy Beaudette	Abuse: D.I. Timothy Beaudette threatened to arrest § 87(2)(b)	B . Complainant Uncooperative

Synopsis

On June 29, 2009, § 87(2)(b) called the IAB and filed a complaint (IAB log #09-31882). The CCRB received the following case on July 6, 2009.

On June 29, 2009, at approximately 3 a.m., § 87(2)(b) was celebrating Gay Pride and was told by D.I. Timothy Beaudette that she could not walk down in the direction of the pier. D.I. Beaudette allegedly said to § 87(2)(b) “What the fuck you need to [go] down there for? (**Allegation A**)” and “If I have to talk to you again, I’m gonna have to lock you up. (**Allegation B**)”

The IAB log noted that § 87(2)(b) sounded somewhat incoherent and possibly intoxicated and that it appeared that she was walking toward officers to get additional information. The log also noted that D.I. Beaudette called the command center and reported that § 87(2)(b) was highly intoxicated and continued to go around getting unidentified officers’ names for about an hour.

In her call to the IAB, § 87(2)(b) identified the subject officer as D.I. Beaudette. D.I. Beaudette’s phone call to the command center confirmed his involvement in the incident. According to CTS, D.I. Timothy Beaudette is a white male officer assigned to the 13th Precinct. § 87(2)(g)

The investigator called § 87(2)(b) five times between July 20, 2009 and August 3, 2009. On July 20, 2009 and July 23, 2009, her phone number was busy and no voicemail was available. On July 27, 2009, the investigator called again and spoke to § 87(2)(b) who stated that she could not talk and would call the investigation back. On July 30, 2009, the investigator called again and left a voicemail message. On August 3, 2009, the investigator called a fifth time and spoke to § 87(2)(b) who, again, stated that she could not talk and would call the investigation back. Two please-call letters were sent to § 87(2)(b) on July 20, 2009 and July 30, 2009. These letters were not returned to the CCRB. § 87(2)(g)

§ 87(2)(b) it is recommended that this case be closed as **complainant uncooperative**.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: